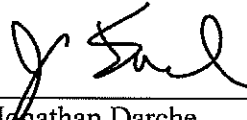


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board, to Assistant Deputy Commissioner Nancy M. Slater, Department Advocate's Office, September 28, 2023. Contents noted. Recommend approval of the negotiated global plea agreement in DADS Nos. 2022-26811 and 2023-27968 against Lieutenant Christopher Fusaro, Tax Registry No. 936628. The case was conferenced on August 24, 2023, before Deputy Commissioner of Trials Jeffrey Adler who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of Ten (10) vacation days, after Lieutenant Christopher Fasuro accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated August 2, 2022 and February 28, 2023. Charges and Specifications are dismissed for plea purposes.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26811
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, FUSARO	FIRST CHRISTOPHE	M.I. M	COMMAND 112 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 936628	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Lieutenant Christophe FUSARO, on or about February 18, 2021, at approximately 0200, while assigned to 112 PCT and on duty, in the vicinity of Intersection 108th Street and 65th Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that he pointed his taser at § 87(2)(b) without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant Christophe FUSARO, on or about February 18, 2021, at approximately 0200, while assigned to 112 PCT and on duty, in the vicinity of Intersection 108th Street and 65th Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that he questioned § 87(2)(b) without sufficient legal authority.	DISMISSED	Penalty to run concurrent with 2022-27968.

DC Brattino
FIRST DEPUTY COMMISSIONER

10/27/23
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

11/2/23
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-27968
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, FUSARO	FIRST CHRISTOPHE	M.I. M	COMMAND 112 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 936628	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Lieutenant Christopher FUSARO, on or about November 5, 2021, at approximately 0138, while assigned to 112 PCT and on duty, in the vicinity of 97-34 63rd Road and 69-01 Woodhaven Blvd, Queens County, abused their authority as a member of the New York City Police Department, in that, they threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant Christopher FUSARO, on or about November 5, 2021, at approximately 0138, while assigned to 112 PCT and on duty, in the vicinity of 97-34 63rd Road and 69-01 Woodhaven Blvd, Queens County, engaged in conduct prejudicial to good order, efficiency , or discipline of the Department in that, they were discourteous to § 87(2)(b) without police necessity, by stating in sum and substance: "I want to thank you for not crying like you did in our cells. Thank you."	DISMISSED	Penalty to run concurrent with 2022-26811.

DC Battino
FIRST DEPUTY COMMISSIONER

10/27/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

11/2/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 27, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case Nos. 2022-26811 and 2023-27968 against Lieutenant Christopher Fusaro, Tax #936628, with the recommendation that the Charges and Specifications against Lieutenant Fusaro be dismissed. It is further recommended that Lieutenant Fusaro receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

TIK/pk

DC Kinsella

Tania I. Kinsella

T **FIRST DEPUTY COMMISSIONER**

APPROVED

NOV 02 2023
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER